

		(Artus v. Gramercy Towers Condominium Assn. (2018) 19 Cal.App.5th 923, 930.) Here, Cross-Complainant seeks a declaration of its rights as to its liability to Plaintiff. The demurrer to this cause of action is OVERRULED. E. SIXTH CAUSE OF ACTION FOR NEGLIGENCE The Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action for negligence. The Court finds that, as written, the Cross-Complaint does not sufficiently allege what duty Cross-Defendant owed to Cross-Complainant. (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662 [“To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff’s damages or injuries.”].) In sum, the Demurrer to the Cross-Complaint is OVERRULED as to the first cause of action for equitable indemnity, second cause of action for apportionment of fault, third cause of action for contribution, fourth cause of action for total indemnity, fifth cause of action for declaratory relief, and SUSTAINED WITH LEAVE TO AMEND as to the sixth cause of action for negligence. Cross-Complainant to give notice.
105	OSP Health Management Inc. vs. Pole USA Investment One, LLC 26-01546948	1. Demurrer to Answer 2. Motion to Strike Portions of Answer 3. Case Management Conference (1-3) Continued to 10/20/2026 at 10:00 AM Moving party to give notice.